

***TENTATIVE RULING**

NEEDS NEW DATE

Background

Plaintiff filed, on 5/20/26, an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he served – via substitute service - with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

However, this Motion was originally scheduled for 6/23/26, yet the court continued it to 8/25/26. Though the court provided mail notice to the Plaintiff of this change, there is no evidence that Defendant was given notice.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,578.34, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,381.82.

Costs are \$583.61.

However, this court finds that Defendant was not given notice of this hearing.

Disposition

Plaintiff's Motion is continued.

Plaintiff to notify Defendant of new date of hearing.

3. 9:00 AM CASE NUMBER: L24-06739

CASE NAME: JOHN LANGERSTON VS. JOHN KANG

FOR ATTORNEY'S FEES AS SANCTIONS AND COSTS

FILED BY: KANG, JOHN

TENTATIVE RULING:

Defendant filed a Motion for attorney's fees, under Section 128.5 of the CCP.

Plaintiff Responded, and Defendant filed a Reply.

The moving papers have been timely filed and served.

Background

Defendant argues that this lawsuit is frivolous only because Plaintiff had already litigated and lost on the same claim, and should never have filed the Complaint. As a consequence, Defendant seeks attorney fees that he incurred in defending himself.

Defendant provided no other reason to justify the request for attorney's fees.

Specifically, this court granted judgment in favor of Defendant after a court trial, on 3/11/26, in which this court found that Plaintiff had already litigated the claim against Defendant – and lost - in a prior, small claims matter. This court found that Plaintiff's claim was barred by res judicata.

In the declaration of Defendant's counsel, counsel writes that he told Plaintiff of his hourly rate and attempted, many times, to persuade the Plaintiff to dismiss his case.

Plaintiff filed his Complaint on 8/19/24, and there is no evidence, during the life of this case, that Defendant filed this Motion 21 days after service of the Motion on Plaintiff.

Analysis

Section 128.5 of the CCP allows a court to order a party to pay the reasonable attorney's fees of another party if the offending party has engaged in actions that are frivolous. The filing of a complaint can qualify as such an action.

However, this statute also has a safe harbor provision, which gives the offending party an opportunity to correct the qualifying action. Thus, the party seeking sanctions must have served the offending party with a copy of the requesting motion 21 days *before* filing the motion with the court. Only if, after notice, the offending party has then not withdrawn the action at issue can the moving party proceed with the motion.

That did not happen here.

Defendant should have provided Plaintiff a copy of this Motion long ago.

Disposition

Defendant's Motion is denied.

Court will issue Order.

4. 9:00 AM CASE NUMBER: L24-08703

CASE NAME: SYNCHRONY BANK VS. LUIS MUNGUIA

**MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT
AND RELEASE AGREEMENT**

FILED BY: SYNCHRONY BANK

***TENTATIVE RULING**

Plaintiff filed a Motion to enter judgment pursuant to stipulation. The Motion was originally scheduled for 6/23/26, but the court continued the matter to 8/25/26.

While the court sent notice to Plaintiff about the 8/25/26, the court did not provide notice of this change to Defendant because Defendant has not filed any pleadings with the court.

It does not appear Plaintiff provided notice to Defendant of the new date, either.

Disposition

This matter will be continued to 12/8/26, 9am.

Plaintiff to provide notice of new date to Defendant.

5. 9:00 AM CASE NUMBER: L24-09288

**CASE NAME: CORE EQUIPMENT LEASING, LLC VS. MOUNTAIN MOVERS EXCAVATION, INC.,
TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT**

FILED BY: MOUNTAIN MOVERS EXCAVATION, INC.,

***TENTATIVE RULING**

In this matter, Defendant filed, on 3/12/26, a Motion to set aside default and default judgment.